

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1537
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 12-114, Arizona Revised Statutes, is amended to
3 read:

4 12-114. Surcharge on court authorized diversion programs for
5 traffic offenses; deposit

6 A. If a court authorizes individuals charged with civil or criminal
7 traffic offenses to attend a court authorized diversion program, including
8 a defensive driving school program, it shall require the assessment of a
9 ~~nine-dollar~~ \$9 surcharge on the fees charged by the court authorized
10 diversion programs. The surcharge applies to every individual who attends
11 a court authorized diversion program, including an individual who holds a
12 commercial driver license.

13 B. A court or a court authorized diversion program shall collect
14 the ~~nine-dollar~~ \$9 surcharge and remit the surcharge to the supreme court,
15 which shall deposit, pursuant to sections 35-146 and 35-147, ~~five-dollars~~
16 \$5 of the surcharge in the judicial collection enhancement fund and the
17 remaining ~~four-dollars~~ \$4 in the ~~peace officer training equipment fund~~
18 PUBLIC SAFETY [DE-ESCALATION AND LIFE SAFETY] [EQUIPMENT LEGISLATIVE] FUND
19 established by section 41-1731.

20 Sec. 2. Section 12-116.10, Arizona Revised Statutes, is amended to
21 read:

22 12-116.10. Assessment; public safety equipment legislative
23 fund

24 A. In addition to any other penalty assessment provided by law, a
25 penalty assessment shall be levied in an amount of ~~four-dollars~~ \$4 on
26 every civil penalty imposed and collected for a civil traffic violation
27 and fine, penalty or forfeiture for a criminal violation of the motor

1 vehicle statutes or for any local ordinance relating to the stopping,
2 standing or operation of a vehicle.

3 B. The court shall transmit the assessments collected pursuant to
4 this section and a remittance report of the fines, civil penalties and
5 forfeitures collected pursuant to this section to the county treasurer,
6 except that municipal courts shall transmit the assessments and the
7 remittance report of the fines, civil penalties and forfeitures to the
8 city or town treasurer.

9 C. The city, town or county treasurer shall transmit the assessment
10 and the remittance report to the state treasurer. The state treasurer
11 shall deposit the assessment in the ~~peace officer training equipment fund~~
12 ~~PUBLIC SAFETY [DE-ESCALATION AND LIFE SAFETY] [EQUIPMENT LEGISLATIVE] FUND~~
13 established by section 41-1731.

14 D. The court may mitigate all or part of the assessment in the same
15 manner and subject to the same limitations in the mitigation of a fine in
16 section 13-825, subsection B.

17 Sec. 3. Section 41-1731, Arizona Revised Statutes, is amended to
18 read:

19 41-1731. Public safety equipment legislative fund; exemptions

20 A. The ~~peace officer training equipment~~ PUBLIC SAFETY
21 ~~[DE-ESCALATION AND LIFE SAFETY] [EQUIPMENT LEGISLATIVE]~~ fund is
22 established consisting of monies deposited pursuant to sections 12-114 and
23 12-116.10. The state treasurer shall administer the fund. Monies in the
24 fund may be used only for peace officer equipment.

25 B. The state treasurer shall invest and divest monies in the fund
26 as provided by section 35-313, and monies earned from investment shall be
27 credited to the fund.

28 C. Monies in the fund:

29 1. Do not revert to the state general fund at the end of the fiscal
30 year.

31 2. Are exempt from the provisions of section 35-190 relating to
32 lapsing of appropriations.

33 3. Are subject to legislative appropriation.

34 [D. ANY PUBLIC SAFETY AGENCY OR TRIBAL AGENCY IN THIS STATE MAY
35 APPLY IN WRITING TO THE STATE TREASURER FOR EQUIPMENT OR SOFTWARE. THE
36 STATE TREASURERS SHALL TRANSMIT A COPY OF EACH REQUEST LETTER TO:

37 1. THE CHAIRPERSONS AND THE RANKING MINORITY MEMBERS OF THE SENATE
38 AND HOUSE OF REPRESENTATIVES APPROPRIATIONS COMMITTEES, OR THEIR SUCCESSOR
39 COMMITTEES.

40 2. THE CHAIRPERSONS AND THE RANKING MINORITY MEMBERS OF THE SENATE
41 PUBLIC SAFETY COMMITTEE, OR ITS SUCCESSOR COMMITTEE, OR THE HOUSE OF
42 REPRESENTATIVES PUBLIC SAFETY AND LAW ENFORCEMENT COMMITTEE, OR ITS
43 SUCCESSOR COMMITTEE.

House Amendments to S.B. 1537

1 Sec. 4. Repeal
2 Section 41-1732, Arizona Revised Statutes, is repealed.

3 Enroll and engross to conform

4 Amend title to conform

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11:24 AM

C: JR

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